

Opposition to Reconsideration

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 41 — Filed March 27, 2026

Rhea Calder opposes Cinder Lake's motion to reconsider or vacate and its request for an interim stay. The March 25 order considered the August 21 letter, public and complete exhibits, briefing, and argument. Calder contends Cinder Lake identifies disagreement, not clear error.

Calder asks the Court to retain the April 1 production deadline and existing protective handling. She does not oppose continued sealing from the public while party production occurs.

Reconsideration Is Not Reargument

Cinder Lake repeats its position that no communication was quoted. The Court expressly considered that fact and concluded the organization conveyed the essential assessment by invoking counsel's review, announcing the result, and describing responsive action.

Calder argues reconsideration should not provide a second merits presentation merely because production consequences are significant. Cinder Lake anticipated the waiver dispute when it chose the wording of its external response.

The Asserted Disclosure

Calder does not contend every reference to an attorney waives privilege. She contends this reference was linked to an announced conclusion on the precise subject counsel investigated and used to assure a federal oversight office that systemic knowing conduct was not substantiated.

In Calder's view, the sequence communicated more than counsel's existence. The March 25 order reasonably treated it as a deliberate presentation of the review's essential result.

Fairness and Scope

Calder argues the complete investigation context is necessary to test whether Cinder Lake's public account omitted contrary interviews, analysis, or recommendations. Limiting discovery to final policies and witnesses would leave counsel's selective synthesis beyond examination.

The ordered scope is tied to the investigation, announced conclusion, and remediation. The Court separately denied a blanket ruling for every future related request, demonstrating that it did not erase privilege across the litigation.

Privilege and Work Product

Calder accepts that privilege protects qualifying communications and that work product receives separate analysis absent waiver. She argues the Court found subject-matter waiver encompassing both because Cinder Lake voluntarily presented the investigation's result.

The protective order limits further dissemination. Calder contends Cinder Lake's concern is loss of secrecy between the parties, which is the consequence of the waiver finding rather than a reason to avoid enforcement.

Fluor and Other Authority

In re Fluor is unpublished and nonprecedential. Calder argues it differs because Cinder Lake affirmatively tied an outside-counsel review to a conclusion presented to a federal office. No binding authority requires a verbatim quotation before a court may find disclosure of substance.

Calder also contends Hawkins supports placing the burden on Cinder Lake and recognizing actual voluntary disclosure, while Rule 502 supplies the current scope framework.

Stay and Conclusion

A stay would delay discovery in a retaliation case filed in December and reward continued withholding after a full hearing. Calder can protect the material under the January 9 order, and Cinder Lake may seek appellate relief if available.

Submitted March 27, 2026 by Nina Ashe for Rhea Calder. Calder asks the Court to deny reconsideration and interim stay and keep production due at 5:00 p.m. on April 1.